

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: May 19, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	23CV416606	Zhao Zheng vs Ming Lin	Demurrer/ Motion to Strike On August 26, 2025, Plaintiff/cross-defendant Zhao Zheng filed a demurrer or motion to strike the defendant Ming Lin'/cross-complainant's cross-complaint. The motion was accompanied by a proof of service indicating electronic service on August 19, 2025. No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 6, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (<i>Hahn v. Mirda</i> (2007) 147 Cal.App.4th 740, 747 (<i>Hahn</i>)). When considering demurrers, courts accept all well pleaded facts as true. (<i>Fox v. JAMDAT Mobile, Inc.</i> (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (<i>Piccinini v. Cal. Emergency Management Agency</i> (2014) 226 Cal.App.4th 685, 688, citing <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318 (<i>Blank</i>)). Moving party meets its burden. The demurrer to the cross- complaint is SUSTAINED.

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LAW AND MOTION TENTATIVE RULINGS

LINE 2	24CV442138	Gary Cayton et al vs El Camino Hospital et al	Motion to Strike Scroll down to Line 2 for Tentative Ruling.
LINES 3-4	25CV467301	Fernando Hernandez et al vs Peter Singler et al	Demurrer (Line #4) & Motion for Sanctions (Line #4) Scroll down to Lines 3-4 for Tentative Ruling.
LINES 5	23CV427732	Bradley Land vs Apple, Inc., a Delaware Corp.	Motion for Summary Judgment/Adjudication Scroll down to Line 5 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

<u>LINE 6</u>	24CV449358	Honglin Chen et al vs Xiaoli Song	Motion to Compel Further Responses to Form Interrogatories, Special Interrogatories, Request for Production, Set One; and Motion for Sanctions This case stems from Defendant Song’s testimony in a prior action brought by Heng Zhang against Plaintiff Brendon Farrell that resulted in a jury awarding Heng Zhang in excess of \$9 million dollars against Plaintiff Farrell. Before the court is Plaintiffs Honglin Chen, Brendon Farrell, and Katherine Chen’s (collectively “Plaintiffs”) motion to compel form interrogatoires (“FROG”), set one; special interrogatories (“SPROG”), set one; and request for production of documents (“RPD”), set one. On July 15, 2025, Plaintiffs filed this motion to compel that was accompanied by a proof of service indicating electronic service on July 14, 2025. In total, Plaintiffs seek further responses to 87 discovery requests: FROG no. 2.2, 2.5, 2.6, 2.7, 2.11, 12.1, 12.2, 12.3, 12.6, 15.1, 17.1, 50.1, 50.4, 50.5, and 50.6; SPROG 1-35; and RPD 1-37. Defendant Xiaoli Song opposes the motion and filed opposition papers on May 6, 2026. Plaintiffs filed a reply brief with declaration in support on May 14, 2026. The Court has carefully reviewed the following moving papers: Plaintiffs’ notice of motion to compel FROG, SPROG, and RPD, set one (totaling 3 pages); Plaintiffs’ memorandum of points and authorities (totaling 11 pages); Declaration of Bredon Farrell in support of Plaintiffs’ motion (totaling 125 pages); Declaration of Honglin Chen in support of Plaintiffs’ motion (totaling 96 pages); Declaration of Katherine Chen in support of Plaintiffs’ motion (totaling 120 pages); Plaintiffs’ separate statement (totaling 43 pages); proof of service (totaling 3 pages); Defendant Song opposition papers (totaling 6 pages); Declaration of Steve Leydiker in support of the defendant’s opposition and attached Exhibits 1-2 (totaling 52 pages); Defendant’s separate statements (totaling 5 pages); Plaintiffs’
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LAW AND MOTION TENTATIVE RULINGS

			brief (totaling 7 pages); Declaration of Chen in support of Plaintiffs' brief (totaling 13 pages); proof of service (totaling 1 page); and the pleadings. On August 15, 2025, the clerk's office sent a rejection letter stating that each motion to compel requires a separate reservation. Parties are admonished to comply in future filings. The Court ORDERS the parties to meet-and-confer in good faith either in person, video conference, or by telephone and conduct reasonable and meaningful discussions about the 87 discovery matters and attempt to narrow the many issues in this motion, including any stipulations to the scope of discovery. If any issues remain after this meeting, which may span several sessions, the parties are ORDERED to file a JOINT statement, no later October 9, 2026, which shall identify the remaining items in dispute and the reasons why further responses should or should not be compelled. Failure to comply with this order will result in consideration of sanctions or forfeiture of the motion. The parties to also discuss a discovery referee and provide a JOINT statement on whether parties will finance a court referee to assist in discovery matters at issue or will submit to a court provided discovery referee. Based on the number and complexity of the 87 requests, the Court will discuss having this matter assigned to a discovery referee under Code of Civil Procedure section 639 and 645.1. The motion to compel the 87 FROG, SPROG, and RFD, and motion for sanctions are CONTINUED to October 20, 2026 at 9:00 a.m. in Department 1.
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LAW AND MOTION TENTATIVE RULINGS

LINE 7	25CV457348	Immigrant Rights Defense Council, LLC et al vs Shamsheer Brar	Motion to Compel Responses to Form Interrogatories & Sanctions Scroll down to Line 7 for Tentative Ruling.
LINE 8	23CV411676	Brian Claire vs Manuel Groto et al	Motion for Reconsideration This motion is specially set and CONTINUED to June 29, 2026 1:30 p.m. in Dept. 18. Parties need not refile moving papers associated with this motion.
LINE 9	23CV427505	Steve McHarris vs City of Milpitas	Motion to Tax Cost This matter is CONTINUED to September 15, 2026 9:00 a.m. in Dept. 1. This case is pending two separate appeals before the Sixth District Court of Appeal, case numbers H053453 and H053878. Plaintiff filed this motion to tax cost on July 21, 2025, opposition papers were filed by the defendant on May 6, 2026. Plaintiff/moving party filed a reply brief on May 11, 2026 requesting that the court defer ruling until an appellate decision is finalized.

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9:01 A.M.			
LINE 1	24CV428731	Sharad Gupta vs Omar Bernabe et al	Order of Examination Parties to appear.
LINE 2	26CV487717	26CV487717	Order of Examination Parties to appear.
LINE 3	23CV426238	Jaiden Holland vs Jennifer Chapman et al	Minor's Compromise Parties to appear.

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9:00 A.M.

Calendar Line # 2

Case Name Gary Cayton et al vs El Camino Hospital et al

Case No. 24CV442138

Motion to Strike

Before the court is defendant El Camino Hospital's motion to strike portions of plaintiffs' first amended complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

On or about June 30, 2023, Gary Cayton ("Decedent") was admitted to defendant El Camino Hospital (erroneously sued as El Camino Hospital d/b/a El Camino Health Los Gatos; hereafter, "Hospital") due to restlessness and after being unable to urinate. (First Amended Complaint ("FAC"), ¶22). At the time of admission, Decedent had limited mobility, was of advanced age, and had multiple complex medical diagnoses that made him unable to care for his own needs, thus dependent upon and requiring the assistance of defendant Hospital's staff for his activities of daily living, including toileting, bed mobility, transfers, and hygiene. (FAC, ¶¶22 – 23).

Defendant Hospital represented to Decedent and his family that it was able, knowledgeable, and sufficiently staffed to care for Decedent in light of his high-risk conditions. (FAC, ¶24). Decedent and his family relied on defendants' representations when it selected defendants' facility to provide care for Decedent. (*Id.*).

Plaintiff alleges that Defendant Hospital's staff did not provide proper pressure ulcer prevention protocol to Decedent. (FAC, ¶26). Decedent developed severe pressure ulcers to his sacrum/ coccyx area. (FAC, ¶25). Defendant Hospital failed to properly treat and heal those pressure ulcers. (FAC, ¶¶27, 39, 40). Decedent's sacral wound started out small but, due to lack of treatment, grew to a stage 4 pressure ulcer. (FAC, ¶29).

Decedent complained to defendant Hospital staff of extreme abdominal pain on or about June 30, 2023. (FAC, ¶32). Decedent underwent surgery for a hernia and abscesses in his abdomen becoming wholly dependent on defendant Hospital's staff for his care needs. (*Id.*). Plaintiff alleges that Defendants' staff failed to assist Decedent with his toileting and hygiene needs leaving him in his feces for long periods on multiple occasions. (FAC, ¶33).

Per Plaintiff, Decedent stopped eating to avoid bowel movements to avoid having to lay in his own feces because he knew nursing staff would not properly care for him. (FAC, ¶35). As a result, Decent lost weight and dropped to 125 pounds. (*Id.*).

On multiple occasions, defendants' staff ignored Decedent's call light and left Decedent unassisted for extended periods of time. (FAC, ¶36). Decedent's feeding tube became infected because defendants' staff withheld care and refused to properly clean the tube and properly care for it. (FAC, ¶37). Decedent developed numerous unexplained bruises during his residence at defendant Hospital. (FAC, ¶38).

Decedent's condition deteriorated significantly and he died on August 20, 2023. (FAC, ¶41).

On June 28, 2024, Decedent, by and through his successors in interest, Monica Cayton and Jolie Higgins ("Plaintiffs") filed a complaint against defendant Hospital, among others, asserting causes of action for:

- (1) Negligence
- (2) Violations of the Elder and Dependent Adult Civil Protection Act
- (3) Wrongful Death

On July 14, 2025, Plaintiffs filed the now operative FAC which asserts causes of action for:

- (1) Negligence

- (2) Violations of the Elder and Dependent Adult Civil Protection Act
- (3) Wrongful Death
- (4) Unfair Competition

On August 25, 2025, defendant Hospital filed the motion now before the court, a motion to strike portions of Plaintiffs' FAC.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 435, subd. (b)(1), any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b)). On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782).

III. ANALYSIS

A. TREBLE DAMAGES

At paragraph 84 of the FAC, Plaintiffs allege, "Plaintiff is entitled to treble damages under Civil Code § 3345¹ as a result of Defendants' unfair business practices." Defendant Hospital moves to strike this allegation relying on *Clark v. Superior Court* (2010) 50 Cal.4th 605, 614 – 615 (*Clark*) where the California Supreme Court held:

Restitution is the only monetary remedy authorized in a private action brought under the unfair competition law. (*Korea Supply Co. v. Lockheed Martin Corp.*, *supra*, 29 Cal.4th at pp. 1146, 1148.) Restitution is not a punitive remedy. The word "restitution" means the return of money or other property obtained through an improper means to the person from whom the property was taken. . . . Because restitution in a private action brought under the unfair competition law is measured by what was taken from the plaintiff, that remedy is not a penalty and hence does not fall within the trebled recovery provision of Civil Code section 3345, subdivision (b).

Plaintiffs, in opposition, acknowledge this holding from *Clark*, but contend the facts here are distinguishable as the unfair competition claim involves elder abuse whereas in *Clark*, the plaintiffs claimed unfair business practices relating to the purchase and sale of annuity contracts. The court does not find this distinction makes a difference. At bottom, both cases concern whether the remedy of restitution under the UCL operates as a penalty and *Clark* makes clear that it does not and that is why treble damages under Civil Code section 3345 is unavailable.

Plaintiffs also contend the present case is distinguishable because they seek disgorgement of defendant Hospital's ill gotten gains/ profits. Plaintiffs cite no legal authority to support their position that disgorgement under the UCL operates as a penalty. To the contrary, the California Supreme Court in *Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1148 explained that disgorgement of profits is an available remedy, but only to the extent that it is restitutionary disgorgement:

¹ Civil Code section 3345, subd. (b), states, in relevant part: "**Whenever a trier of fact is authorized by a statute to impose either a fine, or a civil penalty or other penalty, or any other remedy the purpose or effect of which is to punish or deter**, and the amount of the fine, penalty, or other remedy is subject to the trier of fact's discretion, the trier of fact shall consider the factors set forth in paragraphs (1) to (3), inclusive, in addition to other appropriate factors, in determining the amount of fine, civil penalty or other penalty, or other remedy to impose. Whenever the trier of fact makes an affirmative finding in regard to one or more of the factors set forth in paragraphs (1) to (3), inclusive, it may impose a fine, civil penalty or other penalty, or other remedy in an amount up to three times greater than authorized by the statute, or, where the statute does not authorize a specific amount, up to three times greater than the amount the trier of fact would impose in the absence of that affirmative finding." (Emphasis added).

This court has never approved of nonrestitutionary disgorgement of profits as a remedy under the UCL. While prior cases discussing the UCL may have characterized some of the relief available as “disgorgement,” we were referring to the restitutionary form of disgorgement, and not to the nonrestitutionary type sought here by plaintiff.

Thus, consistent with *Clark*, since the only form of disgorgement available under the UCL is restitutionary disgorgement, it is not a penalty for which treble damages would be available under Civil Code section 3345.

Accordingly, defendant Hospital’s motion to strike the language from paragraph 84 of the Plaintiffs’ FAC identified above is GRANTED.

B. PUNITIVE DAMAGES

Defendant Hospital moves to strike Plaintiffs’ prayer for punitive damages (found at page 21 of the FAC) but only insofar as punitive damages are being sought in connection with Plaintiffs’ first and third causes of action because no claim for punitive damages may be included in a complaint against a health care provider unless the court enters an order permitting such a claim. (Code Civ. Proc., §425.13). Implicitly, defendant Hospital acknowledges Plaintiffs may properly pray for punitive damages in connection with the second cause of action (elder abuse). For that reason alone, defendant Hospital’s motion to strike the prayer for punitive damages from Plaintiffs’ FAC is improper.

Moreover, “because the gravamen of the instant action is violation of the Elder Abuse Act, section 425.13 is inapplicable to the common law intentional torts at issue. (Covenant Care, supra, 32 Cal.4th at p. 779.) ... section 425.13(a) does not apply to punitive damage claims in [plaintiffs’] elder abuse action against [defendant skilled nursing facility].” (*Country Villa Claremont Healthcare Center, Inc. v. Superior Court* (2004) 120 Cal.App.4th 426, 435). The same result applies here as it is the court’s opinion that the gravamen of Plaintiffs’ action is a violation of the Elder Adult Civil Protection Act.

For the above stated reasons, defendant Hospital’s motion to strike the prayer for punitive damages from Plaintiffs’ FAC is DENIED.

IV. CONCLUSION

Based on the foregoing, Defendant Hospital’s motion to strike the language from paragraph 84 of the Plaintiffs’ FAC identified above is GRANTED.

Defendant Hospital’s motion to strike prayer for punitive damages from Plaintiffs’ FAC is DENIED.

Court will prepare the final Order.

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Calendar Line # 3-4
Case Name Fernando Hernandez et al vs Peter Singler et al
25CV467301
Demurrer (Line #3) & Motion for Sanctions (Line #4)
<u>DEMURRER (Line #3)</u> I. BACKGROUND Before the court is defendants Peter A. Singler and Matthew Graham McClean’s demurrer to plaintiffs’ entire first amended complaint and each cause of action. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. On or about November 22, 2024, plaintiff Teriyaki City Grill Santa Clara LLC (“Teriyaki”) and defendant Legacy Real Estate & Associates, Inc. (“Legacy”) entered into a Buyer Representation and Broker Compensation Agreement (“Representation Agreement”) whereby defendant Legacy represented plaintiff Teriyaki with regard to real property located at 2565 The Alameda, Santa Clara, California 95050 (“Property”). (First Amended Complaint (“FAC”), ¶20 and Exh. A). Defendant Legacy was retained by plaintiffs to represent, advise, explain the legal ramifications of agreements to, and negotiate on behalf of plaintiffs Teriyaki and Buyers, <i>infra</i>, with respect to the Purchase Agreement, First Amendment, and assignment of lease, <i>infra</i>. On or about December 13, 2024, plaintiffs Fernando Hernandez (“Hernandez”), Ngoc Nguyen (“Ngoc”), Huyen Nguyen (“Audrey”), and Ha Thanh Hoang (“Kelly”) (collectively, “Buyers”), on the one hand, and defendant The Wicked Group Inc. (“Wicked” or “Seller”), on the other, entered into a Purchase and Sale Agreement (“Purchase Agreement”) of the business assets of a business which operated at the Property. (FAC, ¶21 and Exh. B). The Purchase Agreement was subject to Buyers obtaining an assignment of the lease for the Property from defendant Matthew Graham McClean (“McClean”), the sole shareholder and director of defendant Wicked. (FAC, ¶¶11, 19, and 21). On December 19, 2024, Buyers and Wicked entered into a First Amendment to Purchase and Sale Agreement (“First Amendment”) pursuant to which Buyers were entitled to an assignment of the lease for the Property. (FAC, ¶22 and Exh. C). On December 20, 2024, each of the Buyers wired \$18,000 or a total of \$72,000 into the trust account of defendant Peter A. Singler (“Singler”), attorney for defendants Wicked and McClean. (FAC, ¶¶9 and 23). Defendant Singler was the escrow holder for Buyers and Wicked/ McClean. (FAC, ¶9). Pursuant to the First Amendment, Buyers were entitled to a full or partial refund if the lessor refused to assign the lease for the Property. (FAC, ¶24). The Property’s lessor refused to assign the lease to Buyers through no act, fault, or contribution of Buyers. (<i>Id.</i>) The Property’s lessor refused to assign the lease to Buyers because the lessee, defendant McClean, owed \$38,000 in back rent. (<i>Id.</i>). Defendant McClean did not disclose this arrearage to Buyers. (<i>Id.</i>) In addition, the Property’s lessor refused to assign the lease to Buyers unless the lease was amended to include an “early termination” provision giving the lessor the unconditional right to terminate the lease prior to its stated termination date. (FAC, ¶25). On January 16, 2025, Buyers’ agent emailed defendant Singler instructing Singler not to release the escrowed funds because, among other things, the Property lessor had not assigned the lease to Buyers. (FAC, ¶26).

On or about January 24, 2025, defendant Singler disbursed the escrow funds to his client(s) and himself while there was an unresolved dispute over the rights to the escrow funds, without the Buyers' consent, and in contravention of Buyers' specific instructions. (FAC, ¶27).

On May 22, 2025, Buyers made a written demand to defendant Singler for an accounting of the \$72,000 deposited to defendant Singler's trust account. (FAC, ¶28). Defendant Singler responded stating, "request denied." (*Id.*).

On May 27, 2025, Buyers made a written demand to defendants Singler and McClean to provide Buyers with an assignment of the lease, but defendants Singler, McClean, and Wicked have failed and refused to deliver to Buyers an assignment of the lease. (FAC, ¶29).

On May 27, 2025, Buyers made a written demand to defendant Singler for a return of their \$72,000.00 but defendant Singler has failed and refused to return the money to Buyers. (FAC, ¶30). Also on May 27, 2025, Buyers made a written demand to defendant Singler for all escrow instructions regarding disbursement of the \$72,000.00 held in defendant Singler's trust account, but defendant Singler failed and refused to provide Buyers with all escrow instructions. (FAC, ¶31).

On June 2, 2025, Buyers filed a complaint against defendants Singler and McClean asserting causes of action for:

- (1) Breach of Fiduciary Duty
- (2) Conversion
- (3) Constructive Fraud

On July 28, 2025, plaintiff Buyers and Teriyaki filed the now operative FAC adding defendants Wicked, Legacy, William M. Aboumrad ("Aboumrad")², and Grail Marie Nitsch ("Nitsch")³ and asserting causes of action for:

- (1) Breach of Fiduciary Duty of Escrow Holder
- (2) Conversion
- (3) Rescission
- (4) Negligence of Agent
- (5) Breach of Fiduciary Duty of Agent
- (6) Constructive Fraud

On September 2, 2025, defendants Singler and McClean (collectively, "Moving Defendants") filed the motion now before the court, a demurrer to the entirety of plaintiffs' FAC.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)). When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab*,

² Defendant Aboumrad is alleged to be the Chief Executive Officer, Chief Financial Officer, and Managing Broker of defendant Legacy. (FAC, ¶13).

³ Defendant Nitsch is alleged to be a real estate agent employed by and/or affiliated with defendant Legacy. (FAC, ¶14).

Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315). As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*).

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian, supra*, 116 Cal.App.4th at 994). "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905). "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (*Hahn, supra*, at p. 747). "A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court." (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214).

Code of Civil Procedure section 430.10(f), also allows a demurrer to a complaint on the ground the pleading is uncertain, ambiguous, or unintelligible. (Code Civ. Proc., § 430.10, subd. (f); *Beresford Neighborhood Assn. v. City of San Mateo* (1989) 207 Cal.App.3d 1180, 1191)). A demurrer based on uncertainty is disfavored and will be strictly construed even when the pleading is uncertain in some respects. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616). A demurrer for uncertainty may be sustained when a defendant cannot reasonably determine to what he or she is required to respond. For example, when a plaintiff joins multiple causes of action as one, fails to properly identify each cause of action, or fails to state against which party each cause of action is asserted if there are multiple defendants, a complaint is uncertain. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2). Code of Civil Procedure section 430.10, subdivision (d) provides that a demurrer may be brought on grounds of misjoinder of parties. (Code Civ. Proc., § 430.10, subd. (d)). But "a defendant may not make allegations of defect or misjoinder of parties in the demurrer if the pleadings do not disclose the existence of the matter relied on; such objection must be taken by plea or answer." *Harboring Villas Homeowners Association v. Superior Court* (1998) 63 Cal.App.4th 426, 429. Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348). The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226). However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

III. DEMURRER ANALYSIS

A. FAILURE TO EXHAUST ARBITRATION REMEDIES

Initially, Moving Defendants demur to plaintiffs' entire FAC on the ground that plaintiffs have failed to exhaust arbitration remedies. In *Charles J. Rounds Co. v. Joint Council of Teamsters No. 42* (1971) 4 Cal.3d 888, 899 (*Rounds*) the California Supreme Court said:

Specifically, *where the only issue litigated is covered by the arbitration clause, and where plaintiff has not first pursued or attempted to pursue his arbitration remedy*, it should be held that (1) plaintiff has impliedly waived his right to arbitrate, such that defendant could elect to submit the matter to the jurisdiction of the court; (2) *defendant may also elect to demur or move for summary judgment on the ground that the plaintiff has failed to exhaust arbitration remedies*; and (3) defendant may also elect to move for a stay of proceedings pending arbitration if defendant also moves to compel arbitration.

Moving Defendants point to a provision in the Purchase Agreement (attached as Exhibit B to the FAC and incorporated by reference) which states, in relevant part, "Any dispute relating to or arising out of the interpretation

or enforcement of this Agreement will be submitted to binding arbitration and the parties specifically waive their rights to a jury trial.”

In opposition, plaintiffs raise a number of issues concerning the enforceability of this arbitration clause identified by the Moving Defendants. Preliminarily, plaintiffs assert the arbitration clause here cannot be enforced by the Moving Defendants [Singler and McClean] as neither are a party to the Purchase Agreement. On its face, the Purchase Agreement is between the Buyers and defendant Wicked. Defendant Wicked has not yet appeared in this action. As plaintiffs point out, “Generally speaking, one must be a party to an arbitration agreement to be bound by it or invoke it.” (*JSM Tuscany, LLC v. Superior Court* (2011) 193 Cal.App.4th 1222, 1236 (*JSM*)).

Even so, the *JSM* decision acknowledges:

“There are exceptions to the general rule that a nonsignatory to an agreement cannot be compelled to arbitrate and cannot invoke an agreement to arbitrate, without being a party to the arbitration agreement.” [Citations omitted].

One pertinent exception is based on the doctrine of equitable estoppel. [Citations omitted.] Under that doctrine, as applied in “both federal and California decisional authority, a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are ‘intimately founded in and intertwined’ with the underlying contract obligations.” [Citations omitted.] “By relying on contract terms in a claim against a nonsignatory defendant, even if not exclusively, a plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement.” [Citations omitted.] “The rule applies to prevent parties from trifling with their contractual obligations.” [Footnote – Where the equitable estoppel doctrine applies, the nonsignatory has a right to enforce the arbitration agreement. [Citation omitted.] In such cases, the nonsignatory is not a “third party” within the meaning of Code of Civil Procedure section 1281.2, subdivision (c), and that provision simply does not apply. [Citation omitted.]] [Citation.] (*JSM, supra*, 193 Cal.App.4th at pp. 1236-1237).

Plaintiff acknowledges the exception exists but contends it does not apply here because, as an example, the first cause of action is directed against Singler for his breach of fiduciary duty as an escrow agent not for a breach of the contract (Purchase Agreement/ First Amendment). Yet, the FAC alleges “Singler was an ‘escrow holder’ under Section II.A of the Purchase Agreement and under Section 2.a of the First Amendment.” (FAC, ¶39). Thus, it would appear that plaintiffs rely upon a provision of the subject contract in order to establish defendant Singler’s liability; i.e., defendant Singler’s liability is founded upon and necessarily intertwined with an interpretation of the contract (Purchase Agreement) obligations.

Although not discussed by Plaintiffs in their opposition, McClean’s liability here also appears to be founded upon and necessarily intertwined with obligations found in the Purchase Agreement (McClean alleged to be lessee of Property where business assets, subject of the Purchase Agreement, were located; McClean alleged to be sole shareholder, director, CEO, Secretary, and CFO of defendant Wicked; McClean executed Purchase Agreement as President of Wicked; McClean/ Wicked alleged to have “wrongfully received” a portion of the \$72,000.00 plaintiffs paid pursuant to the Purchase Agreement/ First Amendment).

In the court’s view, it is not clear from the face of the pleading that “the only issue litigated is covered by the arbitration clause” as the *Rounds* court requires in order for a demurrer based on failure to exhaust administrative remedies to apply. (See also *Badgley v. Van Upp* (1993) 20 Cal.App.4th 218, 221—“Where the complaint ‘raises issues not susceptible to arbitration’ the defendant ‘may not merely assert failure to arbitrate an issue as an affirmative defense.’ Rather, the defendant must demand arbitration and seek a stay of the litigation.” [Citations omitted]).

If there is a dispute as to the enforceability of an agreement to arbitrate, an evidentiary hearing is required. The facts are to be proven by affidavit or declaration and documentary evidence with oral testimony taken only in the court's discretion. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1157). “In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” (*Rosenthal v. Great Western Finance Securities Corp.* (1996) 14 Cal.4th 394, 413-414).

Consequently, moving party/Defendants’ demurrer to plaintiffs’ FAC on the ground that plaintiffs have failed to exhaust administrative remedies is **OVERRULED** without prejudice⁴ to Moving Defendants pursuing the right to compel arbitration through other procedures.

B. UNCERTAINTY

Moving Defendants contend the FAC is subject to demurrer for being uncertain in that each claim is asserted by all plaintiffs including plaintiff Teriyaki. Moving Defendants argue that plaintiff Teriyaki did not come into existence until December 19, 2024. However, the date plaintiff Teriyaki came into existence is a fact extrinsic to the FAC. Moving Defendants contend, nevertheless, that it is a fact that this court can take judicial notice of. Moving Defendants cite Code of Civil Procedure section 430.70 which states, “When the ground of demurrer is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, such matter shall be specified in the demurrer, or in the supporting points and authorities for the purpose of invoking such notice, except as the court may otherwise permit.”

Even so, Moving Defendants’ request for judicial notice is procedurally defective in that it fails to comply with California Rules of Court, rule 3.1113, subdivision (l) which states, “Any request for judicial notice must be made in a separate document....” Defendant Tim’s request further violates California Rules of Court, rule 3.1306, subdivision (c) which states, “A party requesting judicial notice of material under Evidence Code section 452 or 453 must provide the court and each party with a copy of the material.” Since Moving Defendants have not complied with these Rules of Court, their request for judicial notice is **DENIED**.

Moving Defendants contend further that the FAC is uncertain because plaintiff Teriyaki is not a party to the contracts (Purchase Agreement/ First Amendment) and thus lack standing. The court agrees that plaintiffs’ FAC is made confusing due to plaintiffs’ failure to comply with California Rules of Court, rule 2.112 which states, “Each separately stated cause of action ... must specifically state ... [t]he party asserting it if more than one party is represented on the pleading (e.g., ‘by plaintiff Jones’); and [t]he party or parties to whom it is directed (e.g., ‘against defendant Smith’).” [Plaintiffs acknowledge as much in conceding that the third cause of action is not directed against the Moving Defendants.]

Accordingly, Moving Defendants’ demurrer to plaintiffs’ FAC on the ground that the pleading is uncertain [Code Civ. Proc., §430.10, subd. (f)] is **SUSTAINED** with 10 days’ leave to amend.

C. BREACH OF FIDUCIARY DUTY

Plaintiffs’ first cause of action, entitled “Breach of Fiduciary Duty of Escrow Holder,” is directed at defendant Singler only. “In order to plead a cause of action for breach of fiduciary duty, there must be shown the existence of a fiduciary relationship, its breach, and damage proximately caused by that breach. The absence of any one of these elements is fatal to the cause of action.” (*Brown v. California Pension Administrators & Consultants, Inc.* (1996) 45 Cal.App.4th 333, 347 – 348). “While breach of fiduciary duty is a question of fact, the existence of legal duty in the first instance and its scope are questions of law.” (*Kirschner Brothers Oil, Inc. v. Natomas Co.* (1986) 185 Cal.App.3d 784, 790; internal citations omitted).

⁴ As *Rounds* specifically allows a defendant to demur on the grounds that plaintiff failed to exhaust administrative remedies, the court rejects plaintiffs’ argument in opposition that the Moving Defendants have waived their right to compel arbitration.

The FAC alleges, in relevant part, “Defendant SINGLER agreed to act as an escrow or stakeholder for his clients (i.e., defendant McCLEAN and . . . WICKED) and a third party (i.e., plaintiffs Buyers) with respect to the Funds.” (FAC, ¶33.) In demurring, defendant Singler contends this allegation is contradicted by provisions of the Purchase Agreement/ First Amendment which are attached to the FAC and incorporated by reference. Specifically, defendant Singler directs the court’s attention to section I(C) of the Purchase Agreement defining “Seller’s Attorney” to mean “Peter A. Singler/ Singler PLC” and section XIV(D)(1) of the Purchase Agreement which states, “Brokers. . . . Seller is represented by Peter A. Singler, Singler, PLC. Although a licensed broker, Mr. Singler is serving solely as Seller’s legal counsel and Seller will be solely responsible for his compensation.”

“Where an ambiguous contract is the basis of an action, it is proper, if not essential, for a plaintiff to allege its own construction of the agreement. So long as the pleading does not place a clearly erroneous construction upon the provisions of the contract, in passing upon the sufficiency of the complaint, we must accept as correct plaintiff’s allegations as to the meaning of the agreement.” (*Aragon-Haas v. Family Security Ins. Services, Inc.* (1991) 231 Cal.App.3d 232, 239).

The provisions cited by defendant Singler are not read in isolation. The First Amendment states, “The Purchase Price will be sent via wire or ACH, in full, to Seller’s Attorney’s trust account, no later than December 20, 2024. The Purchase Price is agreed to be fully earned, and no portion will be refunded to Buyer except as specifically provided immediately below.” “If Landlord refuses to assign the Lease to Buyers, through no act, fault or contribution of Buyers, then: (i) the Purchase Price, less \$10,000, will be retained in Seller’s Attorney’s trust account; (ii) Seller, after reasonable attempts to mitigate, will determine its damages due to Buyer’s breaches. If such damages, after giving effect to any mitigation (including the proceeds of a sale to a third party), are less than the amount retained, Seller will return such excess to Buyers.”

Plaintiffs go on to allege their interpretation of this language at paragraph 39 – “Said \$72,000 was to be delivered to Seller when Buyers received an assignment of the Lease. Buyers did not receive an assignment of the Lease.” In the court’s view, looking at the provisions relied upon by plaintiffs and defendant Singler, plaintiffs’ interpretation does not place a clearly erroneous construction of the contract provisions. Defendant Singler acknowledges that escrow involves the deposit of money with a third party. The parties to the Purchase Agreement/ First Amendment are Buyers and Wicked. Singler is reasonably construed under the contract to be a third party with whom money is being deposited. The contract language can also reasonably be construed to impose a condition upon the delivery of that money, i.e., if⁵ Landlord refuses to assign the Lease to Buyers through no act, fault, or contribution of Buyers. Defendant Singler’s denial that the specified condition(s) occurred involves defendant Singler’s interpretation of the contract provisions and the events; it does not support demurrer.

Defendant Singler also denies he was an escrow agent under the circumstances alleged. However, “the existence or extent of an agency relationship is a question of fact.” (*Universal Bank v. Lawyers Title Ins. Corp.* (1997) 62 Cal.App.4th 1062, 1066). Plaintiffs specifically allege defendant Singler agreed to act as an escrow [agent] and such an agreement can also be implied from plaintiffs’ allegation that Buyers wired \$72,000 into Singler’s trust account and defendant Singler’s subsequent disbursement of those funds to his client(s) and himself which suggests defendant Singler accepted the role.

⁵ “No particular form of language is necessary to make an event a condition, although such words as ‘on condition that,’ ‘provided that’ and ‘if’ are often used for this purpose. An intention to make a duty conditional may be manifested by the general nature of an agreement, as well as by specific language. Whether the parties have, by their agreement, made an event a condition is determined by the process of interpretation.” (Rest.2d of Contracts, §226, Comment a; see also 1 Witkin, Summary of California Law (10th ed. 2010) Contracts, §777—“The words ‘provided’ and ‘upon the condition’ are appropriate methods of stating express conditions.”).

Accordingly, defendant Singler's demurrer to the first cause of action of plaintiffs' FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for breach of fiduciary duty is OVERRULED.

D. CONVERSION

"Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages. Conversion is a strict liability tort. The foundation of the action rests neither in the knowledge nor the intent of the defendant. Instead, the tort consists in the breach of an absolute duty; the act of conversion itself is tortious. Therefore, questions of the defendant's good faith, lack of knowledge, and motive are ordinarily immaterial. [Citations.]" (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066, [80 Cal.Rptr.2d 704]). The basis of a conversion action " 'rests upon the unwarranted interference by defendant with the dominion over the property of the plaintiff from which injury to the latter results. Therefore, neither good nor bad faith, neither care nor negligence, neither knowledge nor ignorance, are the gist of the action.' [Citations.]" (*Ibid.*). (*Los Angeles Federal Credit Union v. Madatyan* (2012) 209 Cal.App.4th 1383, 1387; see also CACI, No. 2100).

Moving Defendants contend the FAC and attached exhibits definitively establish that the \$72,000 was fully earned and thus plaintiffs had no longer had ownership or right to possession of those funds. Moving Defendants' denial of the events as alleged and Moving Defendants' interpretation of the contract provisions does not persuade this court to find plaintiffs' interpretation and application of the contract provisions to be clearly erroneous.

Likewise, Moving Defendants' assertions with regard to damages and/or causation involve their own interpretation or assertion of events which transpired; they are not a proper basis for demurrer.

Accordingly, Moving Defendants' demurrer to the second cause of action of plaintiffs' FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for conversion is OVERRULED.

E. RECISSION

The third cause of action seeks rescission of the Purchase Agreement and First Amendment. Moving Defendants contend plaintiffs cannot seek rescission against them as they are not parties to either of these contracts. Although the FAC clearly directs this third cause of action at defendants Singler and McClean, plaintiffs concede in opposition that this third cause of action "is only against [defendant Wicked]."

Accordingly, Moving Defendants' demurrer to the third cause of action of plaintiffs' FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for rescission is SUSTAINED WITHOUT LEAVE TO AMEND.

F. CONSTRUCTIVE FRAUD

Constructive fraud is defined by Civil Code section 1573 to consist of, "any breach of duty which, without an actually fraudulent intent, gains an advantage to the person in fault, or anyone claiming under him, by misleading another to his prejudice, or to the prejudice of anyone claiming under him; or, any such act or omission as the law specially declares to be fraudulent, without respect to actual fraud." (See also CACI, No. 4111). "In addition to the traditional liability for intentional or actual fraud, a fiduciary is liable to his principal for constructive fraud even though his conduct is not actually fraudulent. Constructive fraud is a unique species of fraud applicable only to a fiduciary or confidential relationship." (*Salahutdin v. Valley of California, Inc.* (1994) 24 Cal.App.4th 555, 562). "[A]s a general

principle constructive fraud comprises any act, omission or concealment involving a breach of legal or equitable duty, trust or confidence which results in damage to another even though the conduct is not otherwise fraudulent. Most acts by an agent in breach of his fiduciary duties constitute constructive fraud. The failure of the fiduciary to disclose a material fact to his principal which might affect the fiduciary's motives or the principal's decision, which is known (or should be known) to the fiduciary, may constitute constructive fraud. Also, a careless misstatement may constitute constructive fraud even though there is no fraudulent intent." (*Ibid.*).

Moving Defendants demur by arguing that they did not owe a fiduciary duty to plaintiffs. For the reasons discussed above in connection with the first cause of action (breach of fiduciary duty), plaintiffs have stated sufficient allegations to give rise to an escrow agent relationship between plaintiff Buyers and defendant Singler.

However, as to defendant McClean, the court does not agree that plaintiffs have sufficiently alleged defendant McClean owed plaintiffs a fiduciary duty. Plaintiffs argue in opposition that defendant McClean made certain representations in the Purchase Agreement and therefore had an affirmative duty not to mislead the plaintiffs. However, the Purchase Agreement/ First Amendment is entered into between plaintiff Buyers and defendant Wicked. Defendant McClean executed the contracts as the President of Wicked, not in his own individual capacity. "[A] corporation . . . may act only through its officers, agents, and employees." (*Burdette v. Carrier Corp.* (2008) 158 Cal.App.4th 1668, 1689).

Consequently, defendant Singler's demurrer to the sixth cause of action of plaintiffs' FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for constructive fraud is **OVERRULED**.

Defendant McClean's demurrer to the sixth cause of action of plaintiffs' FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for constructive fraud is **SUSTAINED** with 10 days' leave to amend.

IV. CONCLUSION

Based on the foregoing, moving party/Defendant's demurrer to plaintiffs' FAC is **SUSTAINED**, in part, and **OVERRULED** in part as follows: (A) Failure to Exhaust Administrative Remedies is **OVERRULED** without prejudice; (B) Uncertainty is **SUSTAINED** with 10 days' leave to amend; (C) Breach of Fiduciary Duty is **OVERRULED**; (D) Conversion is **OVERRULED**; (E) Rescission is **SUSTAINED WITHOUT LEAVE TO AMEND**; (F) Constructive Fraud, defendant Singler's demurrer to the sixth cause of action of plaintiffs' FAC is **OVERRULED**. Defendant McClean's demurrer to the sixth cause of action of plaintiffs' FAC is **SUSTAINED** with 10 days' leave to amend. The Court will prepare the formal Order.

MOTION FOR SANCTIONS (Line #4)

I. BACKGROUND

Before this Court is Defendant Peter Singler and Matthew Graham McClean's (collectively "Defendants") motion for sanctions in the amount of \$45,353.00 against Fernando Hernandez, Ngoc Thamhon Nguyen, Huyen Nguyen, Ha Thanh Hoang, and Teriyaki City Grill Santa Clara LLC (collectively "Plaintiffs") and Plaintiffs' attorneys of record, Matthew A. Crosby and Michael C. Crosby under Code of Civil Procedure section 128.7 and 128.5. Defendant filed the motion for sanctions on October 6, 2025, the motion was accompanied by a proof of service indicating electronic service.

Plaintiffs oppose the motion and filed opposition papers on May 6, 2026.

The Court has carefully reviewed the following moving papers: notice of motion (totaling 2 pages); memorandum of points and authorities regarding request for sanctions (totaling 18 pages); Declaration of Peter Singler and attached Exhibits marked as B, C, D, E-1, E-2, E-3, and 1 (totaling 47 pages); proof of service (totaling 3 pages); Plaintiffs opposition to sanctions (totaling 11 pages); Declaration of Matthew A. Crosby (totaling 6 pages); Defendant's reply brief (totaling 2 pages); and the pleadings.

II. LEGAL STANDARD

A. PROCEDURAL REQUIREMENT

Code of Civil Procedure section 128.7(c)(1) requires that a motion for sanctions brought under section 128.7 to be made separately from other motions and that notice of the motion must be *served, but not filed* with the Court, unless, within 21 days after service of the motion, the challenged paper is not withdrawn. This 21-day time period is known as a "safe harbor" period and its purpose is to permit an offending party to avoid sanctions by withdrawing the improper pleading during the safe harbor period. (*Li v. Majestic Industry Hills LLC* (2009) 177 Cal. App. 4th 585, 591). This permits a party to withdraw a questionable pleading without penalty, thus saving the court and the parties time and money litigating the pleading as well as the sanctions request. (*Id.*).

Here, the proof of service of the motion for sanctions under section 128.7 and 128.5 indicate that the notice of the motion was served and filed with the Court on the same date on October 6, 2025. However, Defendants counsel, Peter Singler attests in his Declaration that he complied with the 21-day safe harbor period pursuant to section 128.7(c)(1). Mr. Singler attests that he warned Plaintiffs' counsel on several occasions regarding the frivolous claims in the Complaint and directed Plaintiffs' counsel to review the contract at issue and emails from Plaintiffs. (Declaration of Singler, at p.2 ; Exhibit E-1-E-3). On July 28 2025, Plaintiffs' counsel rejected the request. Defense counsel stated he served a copy of the motion for sanctions more than 21-days before service. Nearing the last day, Plaintiffs amended and filed a FAC, which reset the process. (*Id.* at p. 2-3). The demurrer was not scheduled to be heard until May 19, 2026, and the defendants served this current motion and waited an additional 21-days before filing.

The Court finds that the procedural 21 safe harbor period has been met and will weigh the substance of the motion.

B. SUBSTANTIVE REQUIREMENT

Pursuant to Code of Civil Procedure section 128.5: "A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous⁶ or solely intended to cause unnecessary delay." (Code Civ. Proc., § 128.5, subd. (a)). If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in presenting or opposing the motion. (*Id.*, subd. (f)(1)(C)). "In determining what sanctions, if any, should be ordered, the court shall consider whether a party seeking sanctions has exercised due diligence." (*Id.*, subd. (f)(1)).

Pursuant to Code of Civil Procedure section 128.7: "Every pleading, petition, written notice of motion, or other similar paper shall be signed by at least one attorney of record in the attorney's individual name, or, if the party is not represented by an attorney, shall be signed by the party. Each paper shall state the signer's address and telephone number, if any. Except when otherwise provided by law, pleadings need not be verified or accompanied by affidavit. An unsigned paper shall be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party." (Code Civ. Proc., § 128.7, subd. (a).)

"By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or unrepresented party is certifying that to the best of the

⁶ The term "frivolous" is defined as "totally and completely without merit or for the sole purpose of harassing an opposing party." (Code Civ. Proc., § 128.5, subd. (b)(2)).

person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met:

- (1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.
- (2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.
- (3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
- (4) The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief. (Code Civ. Proc., § 128.7, subd. (b)).

If the court determines that subdivision (b) has been violated, the court may "impose an appropriate sanction upon the attorneys, law firms, or parties that have violated subdivision (b) or are responsible for the violation. In determining what sanctions, if any, should be ordered, the court shall consider whether a party seeking sanctions has exercised due diligence." (*Id.*, subd. (c); *Eichenbaum v. Alon* (2003) 106 Cal App 4th 967, 976)). Section 128.7 does not require a finding of subjective bad faith; instead it requires only that the Court find that the conduct be objectively unreasonable. (*In re Marriage of Reese & Guy* (1999) 73 Cal. App. 4th 1214, 1221).

A court *may* impose sanctions under section 128.7 if it concludes a pleading was filed for an improper purpose or was indisputably without merit, either legally or factually. (*Bucur v. Ahmad* (2016) 244 Cal.App.4th 175, 189–190). A claim is factually frivolous if it is "not well grounded in fact" and is legally frivolous if it is "not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law." (*Id.*). The moving party bears the burden of showing that the party's conduct in asserting the claim was objectively unreasonable. (*Id.*). A claim is objectively unreasonable if "any reasonable attorney would agree that [it] is totally and completely without merit." (*Id.*). However, "section 128.7 sanctions should be 'made with restraint' [Citation], and are not mandatory even if a claim is frivolous." (*Peake v. Underwood* (2014) 227 Cal.App.4th 428. at 448).

Section 128.7 was enacted by the Legislature based on rule 11 of the Federal Rules of Civil Procedure (28 U.S.C.), as amended in 1993 (rule 11). (*Musaelian v. Adams* (2009) 45 Cal.4th 512, 518, fn. 2.) Accordingly, federal case law construing rule 11 is persuasive authority on the meaning of section 128.7. (*Guillemin v. Stein* (2002) 104 Cal.App.4th 156, 168). Under rule 11, even though an action may not be frivolous when it is filed, it may become so if later-acquired evidence refutes the findings of a pre-filing investigation and the attorney continues to file papers supporting the client's claims. (*Childs v. State Farm Mut. Auto. Ins. Co.* (5th Cir.1994) 29 F.3d 1018, 1025). As a result, a plaintiff's attorney cannot "just cling tenaciously to the investigation he had done at the outset of the litigation and bury his head in the sand." (*Id.*). This requires an attorney to conduct a reasonable inquiry to determine if his or her client's claim was well-grounded in fact and to take into account the adverse party's evidence. (*Id.*).

III. ANALYSIS

Here, Defendants seek sanctions in the amount of \$45,353.00 against the Plaintiffs and Plaintiffs' counsel of record for filing an improper, factually and legally frivolous FAC that lacks evidentiary supports and violates the requirements imposed by section 128.7(b) and repeated filing of baseless complaints requiring Defendants to incur attorney's fees. Defendants assert that Plaintiffs acted in bad faith or that Plaintiffs' tactical actions seeking a payout by an insurance carrier warrant sanctions. (Defendants motion, at p. 4-5). Defendants raise several issues

that attack Plaintiffs' FAC, including but not limited to: allegations that Plaintiffs breached the agreement; Defendant Singler owed no fiduciary duty to Plaintiffs as he was exclusively TWG's attorney; Defendant McClean was not party of the Contract and thus had no duty to disclose; and Plaintiffs request to reinstate the Contract and subsequent actions to move forward with closing despite a breach of Contract. Despite contending that Plaintiffs FAC is baseless, Defendants emphasize that all of Plaintiffs' claims are subject to a mandatory arbitration provision stated within the Contract. (*Id.*). Plaintiffs did not comply with the arbitration provision before filing this action. (*Id.*). Defendants have filed demurrers on this case and expended significant attorney's fees and cost as a result and seeks sanctions for Plaintiffs conduct which defense deserves as frivolous, bad faith, and tactical to drive up defense costs. (*Id.*). Defense counsel attest that through August 31, 2025, he spent 32 hours attempting to meet and confer, research review, manage his staff in preparation of the demurrer to the original complaint and motion for sanctions. (Declaration of Singler, at p. 7). Mr. Singler spent an additional 18.7 hours repeating this process for the FAC and estimates to likely spend another 6 hours in reviewing opposition briefs, preparing a reply brief, and appearing in court. (*Id.*). Mr. Singler's hourly rate for this matter is \$750.00. Defense also wrote off 11 hours for an Neema Desai who has an hourly rate of \$175.00. (*Id.*). Defense seeks 23.3 hours of time for Laura Feil for paralegal work at the hourly rate of \$160.00. (*Id.*). In total, the defendants seek \$45,353.00 in sanctions for attorney's fees and costs. (*Id.*, at p. 5; Exhibit 1).

In opposition, Plaintiffs contend that Defendants seek to litigate the substance of the underlying case that should be reserved for another motion, i.e. summary judgment, and that a motion for sanctions is improper if material facts are in dispute as in this matter. (Plaintiff's Opposition, p. 2). Plaintiffs' counsel refute Defendants' assertion that the action is frivolous, Plaintiffs' counsel claims he has diligently fulfilled his duty to investigate the case both factually and legally. (*Id.*, at p. 6). Plaintiff asserts that section 128.7 and 128.5 are limited and inapplicable in this case. (*Id.*). Plaintiffs assert that Mr. Singler was hired by the Buyers and Sellers to serve as an escrow holder and was obligated to keep \$72,000.00 in an Interest on Lawyers Trust Account ("IOLTA") pending assignment by the landlord of the Lease. Plaintiffs did not receive assignment of the existing lease or a new lease, but on or about January 24, 2025, Mr. Singler disbursed the funds to his client and himself. (*Id.*). Plaintiff asserts that the six causes of actions set forth in Plaintiffs' FAC was not made for an improper purpose and warranted by law arising from factual contentions that are supported by evidence. (*Id.*, at p. 3). Plaintiffs points to some of the material facts in dispute, such as, Defendant McClean's executive role in the Wicked Group, Inc., and lessee under the lease that was anticipated to be assigned to Plaintiffs Buyers; the purchase agreement was subject to Buyers obtaining an assignment on the lease; the agreement to acquire fixtures; the price increase from \$67,000.00 to \$72,000.00 to acquire fixtures; conditions to Seller's retention of the purchase price; and Mr. Singler's duty to Plaintiffs Buyers as the escrow holder of the \$72,000.00 that was to be held until a specific event or performance was completed. (*Id.*, at p. 3-5). Plaintiff also refutes Defendants claims that the FAC was filed for an improper purpose, such as to harass, cause unnecessary delay, or drive up litigation costs. (*Id.*, at p. 7). Plaintiffs filed the FAC in good faith based on conducting formal inquiry, information, and evidence of facts that are disputed. (*Id.*; Declaration of Crosby, p. 3). Prior to filing the complaint, Plaintiffs' counsel met with all of the plaintiffs and interviewed them in regards to the facts of the case, conducted third party percipient interviews, and investigation of persons knowledge of the transaction. (Declaration of Crosby, p. 3). Prior to filing a FAC, counsel conducted further investigation of fact and determined that all factual contentions are supported by evidence. (*Id.*). Plaintiffs' counsel also attest to having conducted legal research in support of its claims to refute defendants' claim that the action is frivolous, "totally and completely without merit or for the sole purpose of harassing an opposing party." (*Id.*, at p. 4).

In its reply brief, Defendants assert that Plaintiffs fails to raise any viable defense in its opposition. Defendants claim that all of Plaintiffs' claims are subject to mandatory arbitration and that the required elements of Plaintiffs' claims are directly contradicted by the agreements with control the FAC. (Defendant's Reply, at p. 2). Defendants allege that despite being warned of these defects and motion for sanctions, Plaintiffs filed the original complaint, FAC, and

presented meritless opposition to Defendant’s demur. (*Id.*). Accordingly, Defendants request sanctions in the amount of \$45,353.00 against the Plaintiffs and Plaintiffs’ counsel of record.

The Court finds that there are material facts in dispute. Defendants have not met its prima facie burden of showing that the plaintiffs filed the FAC primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation; the claims, defenses, or other legal contents are not warranted by law or by nonfrivolous argument for extension, modification, or reversal of existing law or establishment of new law; the allegations and other factual contentions have no evidentiary support; and the denials of factual contentions are not warranted on evidence. In line with the court’s ruling on the Defendants’ demurrer, which overruled some of the causes of actions, the defendants cannot demonstrate that the FAC is completely without merit.

IV. CONCLUSION

Based on the foregoing, Defendants motion for sanctions is DENIED.

Calendar Line # 5

Case Name Bradley Land vs Apple, Inc., a Delaware Corp.

Case No. 23CV427732

Motion for Summary Judgment/Adjudication

Before the court is Defendant Apple Inc.’s motion for summary judgment or, in the alternative summary adjudication. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

During the second half of 2021, many employers decided to require their employees to get COVID shots in order to keep their jobs. (Complaint, ¶12). Defendant Apple Inc. (“Apple”) did not enact a mandatory COVID vaccine policy for employees at its Cupertino headquarters or its retail stores. (Complaint, ¶13). At most, defendant Apple required employees take a COVID test before going to work. (*Id.*)

Plaintiff Bradley Land (“Plaintiff”) worked as a Threat Intelligence Analyst on defendant Apple’s Security Engineering and Architecture team. (Complaint, ¶14). By the fall of 2021, Plaintiff had worked at defendant Apple for over thirteen years. (*Id.*) Plaintiff received excellent reviews and had no record of discipline. (*Id.*)

In 2021, defendant Apple distributed a COVID vaccination survey to its corporate employees. (Complaint, ¶15.) The survey allowed for four possible answers: (a) I am fully vaccinated; (b) I have received the first vaccine shot but not the second; (c) I am unvaccinated; (d) I choose not to answer. (*Id.*) Defendant Apple stated in the survey that it would assume anybody who selected “d” was unvaccinated, whether true or not. (Complaint, ¶16.) Defendant Apple also stated the survey results would be shared with other employees and unnamed third parties. (*Id.*)

Plaintiff was working remotely from Virginia when he received the survey. (Complaint, ¶17). Plaintiff informed his supervisor, senior manager, and the human resources department that he objected to the forced disclosure of his personal health information. (*Id.*) Plaintiff also told them that he objected to defendant Apple making assumptions about his vaccination status and sharing that confidential information with other Apple employees and third parties. (*Id.*)

Defendant Apple responded to Plaintiff’s objection by terminating his employment. (Complaint, ¶18). Plaintiff’s employment was terminated effective December 15, 2021. (*Id.*) Defendant Apple said it fired Plaintiff for not complying with its COVID-19-related policies. (Complaint, ¶19).

On December 14, 2023, Plaintiff filed a complaint against defendant Apple asserting causes of action for:

- (1) Declaratory Relief - Violation of Article I Section I of the Cal. Constitution
- (2) Wrongful Termination in Violation of Public Policy

On January 29, 2024, defendant Apple filed an answer to Plaintiff's complaint.

On April 26, 2024, defendant Apple filed a motion for judgment on the pleadings. On June 20, 2024, the Honorable Shella Deen issued an order, among other things, granting defendant Apple's motion for judgment on the pleadings as to the first cause of action but denying defendant Apple's motion for judgment on the second cause of action.

On August 11, 2025, defendant Apple filed the motion now before the court, a motion for summary judgment/adjudication of Plaintiff's remaining claim, wrongful termination in violation of public policy.

II. LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843). In analyzing motions for summary judgment or adjudication, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294). "[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519). If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See *Id.*; see also *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468). Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at 849-50). Therefore, summary judgment or adjudication is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c); *Villa v. McFarren* (1995) 35 Cal.App.4th 733, 741). "A party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. 'A motion for summary adjudication...shall proceed in all procedural respects as a motion for summary judgment.'" (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630 [internal citations omitted]). Code of Civil Procedure section 437c(t): "[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that *does not completely dispose* of a cause of action, affirmative defense, or issue of duty pursuant to" subdivision (t).

Pursuant to Code of Civil Procedure section 437c(p)(1), the plaintiff moving for summary judgment must satisfy the initial burden of proof by presenting proving each element of a cause of action. In reviewing the motion, courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389; *Gold v. Weissman* (2004) 114 Cal.App.4th 1195, 1198-99). Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (Code Civ. Proc. § 437c(p)(1)). To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166).

A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2)). To meet this burden of showing a cause of action cannot be established, a defendant must show not only "that the

plaintiff *does not possess* needed evidence” but also that “the plaintiff *cannot reasonably obtain* needed evidence.” (*Aguilar, supra*, 25 Cal.4th at p. 854)(emphasis added). It is insufficient for the defendant to merely point out the absence of evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891). The defendant “must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (*Id.*). The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (*Aguilar, supra*, 25 Cal.4th at p. 855). “Once the defendant. . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2)). The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (*Id.*) “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467).

Code of Civil Procedure section 457c(c): “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-82). If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1544).

III. ANALYSIS

A. PROCEDURAL VIOLATION

As a preliminary matter, the court notes that Plaintiff’s opposition is untimely filed and served. The most recently amended version of Code of Civil Procedure section 437c, subdivision (b)(2), states, “Any opposition to the motion shall be served and filed not less than 20 days preceding the notice or continued date of hearing, unless the court for good cause orders otherwise.” Based on a hearing date of May 19, 2026, Plaintiff’s opposition was due on April 29, 2026. Plaintiff did not file or serve opposition until May 11, 2026, twelve days late.⁷

California Rules of Court, rule 3.1300, subdivision (d) states, “No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.”

Plaintiff, now self-represented,⁸ requests the court nevertheless consider his late-filed opposition noting his prior counsel’s withdrawal from representation and indicating he “diligently attempted to retain substitute representation.”⁹

Since the court has discretion to consider a late filed paper, since defendant Apple has not demonstrated any real prejudice from the late filing, and to avoid the expenditure of any further judicial resources, the court will look past

⁷ Even under the former version of Code of Civil Procedure section 437c, subdivision (b)(2), Plaintiff’s opposition had to be filed and served not less than 14 days preceding the hearing or, here, by May 5, 2026. Under either version, Plaintiff’s opposition is untimely.

⁸ Although a judge should ensure that self-represented litigants are not being misled or unfairly treated (see *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284), self-represented litigants are not entitled to special treatment with regard to the Rules of Court or Code of Civil Procedure. “[W]e cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona. [Citations.]” (*Stein v. Hassen* (1973) 34 Cal. App. 3d 294, 303). “A litigant has a right to act as his own attorney [citation] ‘but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts.’” (*Lombardi v. Citizens Nat’l Trust & Sav. Bank* (1955) 137 Cal.App.2d 206, 208-209).

⁹ See Plaintiff’s Request that the Court Consider Late-Filed Opposition to Defendant’s Motion for Summary Judgment.

this procedural violation and consider the opposition on its merits. However, Plaintiff is hereby admonished for the procedural violation. Any future violation may result in the court's refusal to consider the untimely filed papers.

B. WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY

" '[W]hile an at-will employee may be terminated for no reason, or for an arbitrary or irrational reason, there can be no right to terminate for an unlawful reason or a purpose that contravenes fundamental public policy.' [Citations omitted.]" (*Silo v. CHW Med. Found.* (2002) 27 Cal.4th 1097, 1104). "The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm." (*Yau v. Allen* (2014) 229 Cal.App.4th 144, 154.) "[F]or a policy to support a wrongful discharge claim, it must be: (1) delineated in either constitutional or statutory provisions; (2) "public" in the sense that it "inures to the benefit of the public" rather than serving merely the interests of the individual; (3) well established at the time of the discharge; and (4) substantial and fundamental." (*Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 894).

In moving for summary judgment/ adjudication of this cause of action, defendant Apple invites the court to revisit an argument defendant Apple earlier made in moving for judgment on the pleadings, i.e., the second cause of action for wrongful termination in violation of public policy is derivative of the first and since the Honorable Deen has already made a determination, as a matter of law, that Plaintiff cannot state a cause of action for invasion of privacy because the public policy to which this claim is tethered has not been violated, then there can be no wrongful termination.

In revisiting this argument, the court will now agree that Plaintiff cannot maintain a violation for wrongful termination in violation of public policy where the Plaintiff's exercise (or refusal to waive) his constitutional right of privacy would not, as a matter of law, amount to an actionable invasion of privacy. Defendant Apple relies, in part, upon *Pettus v. Cole* (1996) 49 Cal.App.4th 402 (*Pettus*) to assert the proposition that the right to privacy provides a public policy sufficient to state a cause of action for wrongful termination only if the elements for invasion of privacy are all present. Indeed, the *Pettus* court undertook an analysis of an invasion of privacy claim and only after undertaking such an evaluation and determining the test for a violation had been met did the *Pettus* court reach the conclusion that a claim for wrongful termination may proceed. (*Pettus, supra*, 49 Cal.App.4th at pp. 452 – 463).

The test the *Pettus* court undertook is the same one that Judge Deen enunciated in her earlier ruling granting motion for judgment on the pleadings of the first cause of action.

[The California Supreme Court] articulated a two-part inquiry for determining whether the right to privacy under article I, section 1 has been violated. (*Hill, supra*, 7 Cal.4th at p. 26).

First, the complaining party must meet three "threshold elements' ... utilized to screen out claims that do not involve a significant intrusion on a privacy interest protected by the state constitutional privacy provision." (*Loder v. City of Glendale* (1997) 14 Cal.4th 846, 893 [59 Cal. Rptr. 2d 696, 927 P.2d 1200] (*Loder*)). The party must demonstrate "(1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy." (*Hill, supra*, 7 Cal.4th at pp. 39–40). This initial inquiry is necessary to "permit courts to weed out claims that involve so insignificant or de minimis an intrusion on a constitutionally protected privacy interest as not even to require an explanation or justification by the defendant." (*Loder*, at p. 893).

Second, if a claimant satisfies the threshold inquiry, "[a] defendant may prevail in a state constitutional privacy case by negating any of the three elements just discussed or by pleading and proving, as an

affirmative defense, that the invasion of privacy is justified because it substantively furthers one or more countervailing interests.” (*Hill, supra*, 7 Cal.4th at p. 40.) “The plaintiff, in turn, may rebut a defendant's assertion of countervailing interests by showing there are feasible and effective alternatives to defendant's conduct which have a lesser impact on privacy interests.” (*Ibid.*). (*Lewis v. Superior Court* (2017) 3 Cal.5th 561, 571-572).

Judge Deen reached the conclusion that Plaintiff had not met the “threshold elements” for an invasion of privacy claim concluding, “Plaintiff has not alleged conduct by defendant Apple constituting a serious invasion of privacy.”

The Plaintiff, in opposition, takes issue with Judge Deen’s finding and conclusion claiming there remain triable issues of material fact with regard to whether defendant Apple’s conduct constituted a serious invasion of privacy offering only his declaration in which he states, in relevant part, his *belief* that, “Defendant’s conduct violated my privacy rights and California public policy.”¹⁰ However, Plaintiff’s subjective belief does not overcome or even create a triable issue with regard to Judge Deen’s previous legal determination. (See, e.g., *King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 433—“Moreover, plaintiff’s subjective beliefs in an employment discrimination case do not create a genuine issue of fact; nor do uncorroborated and self-serving declarations.”).

The court concludes Plaintiff may not maintain a cause of action for wrongful termination in violation of public policy where, as here, the court has already made a determination that Plaintiff cannot state an underlying violation of public policy.

IV. CONCLUSION

Based on the foregoing, defendant Apple’s motion for summary judgment is GRANTED. The Court will prepare the formal Order.

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¹⁰ See Plaintiff’s Separate Statement in Opposition to Defendant’s Motion for Summary Judgment, Disputed Material Fact No. 3; see also Declaration of Bradley Land in Support of Opposition to Motion for Summary Judgment, ¶¶6 – 8.

Calendar Line # 7
Case Name Immigrant Rights Defense Council, LLC et al vs Shamsher Brar
Case No. 25CV457348
Motion to Compel Responses to Form Interrogatories & Sanctions On July 18, 2025, the plaintiff, Immigration Rights Defense Council (“Plaintiff”) filed a motion to compel responses for form interrogatories (“RFI”), set one and sanctions against Defendant Shamsher Brar. The motion was accompanied by a proof of service via mail delivery on that same day. No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 6, 2026.¹¹ A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Moving party meets its burden of proof. <u>I. BACKGROUND</u> The Court has carefully reviewed Plaintiff’s moving papers including, notice of motion, memorandum of points and authorities, Declaration of Sebastian M. Medvei and attached Exhibit 1, and proof of service, (totaling 18pages); and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2017.010: “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (<i>City of Los Angeles v. Superior Court</i> (2017) 9 Cal.App.5th 272, 288) .Where a party objects or responds inadequately to discovery requests, a motion lies to compel further responses, and that party has the burden to justify the objections or inadequate responses. (<i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to a demand for inspection”]). “A trial court’s determination of a motion to compel discovery is reviewed for abuse of discretion. However, when the facts asserted in support of and in opposition to the motion are in conflict, the trial court’s factual findings will be upheld if they are supported by substantial evidence.” (<i>Costco Wholesale Corp. v. Superior Court</i> (2009) 47 Cal.4th 725, 733). “The purpose of the discovery rules is to enhance the truth-seeking function of the litigation process and eliminate trial strategies that focus on gamesmanship and surprise. In other words, the discovery process is designed to make a trial less a game of blindman’s bluff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.” (<i>Juarez v. Boy Scouts of Am., Inc.</i> (2000) 81 Cal.App.4th 377, 389). <u>A. Procedural Requirements</u> (1) Timeliness Code of Civil Procedure section 2030.300, subdivision (c), provides that notice of a motion to compel further responses must be given within 45 days following the service of the verified response, or any

¹¹ The Court notes that this is the third discovery motion that was unopposed in this matter. On May 5, 2026, the court heard the plaintiff’s motion to deem request for admissions admitted and sanctions. The defendant did not oppose the motion. On May 14, 2026, the court heard the plaintiff’s motion to compel responses to production of documents, set one and sanctions. The defendant did not oppose the motion.

supplemental verified response, or by a later date agreed-upon in writing, failing which the propounding party waives any right to compel a further response to the interrogatories. (Code Civ. Proc., § 2030.300, subd. (c); but see *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 134-136 [suggesting that the 45-day deadline does not apply to (i.e., it does not begin to run with service of) objections-only responses; it only applies to responses that are required to be verified]).

The 45-day deadline “is ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410).

“Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days[.]” (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)).

(2) Meet-and-Confer

“A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2030.300, subd. (b)(1).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040).

(3) Separate Statement

California Rules of Court, rule 3.1345 requires that any motion involving the content of discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for why an order compelling further responses is warranted.

B. Motion to Compel Responses to Form Interrogatories

Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within thirty (30) days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b).) There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.) Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1).) In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a).)

III. ANALYSIS

Plaintiff served Defendant Brar with RFI, Set One, on February 13, 2025 that was accompanied by a proof of service indicating mail service (Exhibit 1 to the Declaration of Medvei). Defendant’s verified responses to Plaintiff’s RFI was due on March 20, 2025. (Plaintiff’s motion, at p. 4). Defendant did not serve any responses and pursued this motion to compel responses to RFI, set one, on July 18, 2025 (Declaration of Medvei, at p. 6).

Here, the defendant failed to produce verified responses to discovery that were due over a year ago on March 20, 2025. The court was not provided with any information that the defendant sought an extension or substantially complied with the outstanding discovery prior to this hearing.

Per Code of Civil Procedure section 1005(b) opposition papers were due on May 6, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious

arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Moving party meets its burden of proof.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290 provides: “(c) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).”

Here, Plaintiff’s counsel seeks \$2,250.00 for attorney’s fees based three hours of work in drafting the motion, researching, and preparing a reply brief, and appearing for the hearing at an hourly rate of \$750.00. The plaintiff also seeks \$60.00 in filing fees.

The request for sanctions is GRANTED in part and DENIED in part in regard to the total amount requested. Considering the relatively straightforward nature of the motion, no opposition brief being timely filed, no reply brief, the Court awards sanctions against the defendant in the amount of \$750.00, calculated based on 1.5 hours including one hour to file the present motion and half an hour to attend the hearing at the rate of \$500.00 per hour. The Court also grants the \$60.00 requested for filing fees. The total amount of sanctions award against the Defendant is \$810.00.

V. CONCLUSION

Based on the foregoing, Plaintiff’s unopposed motion to deem RFID, set one is GRANTED.

Plaintiff’s request for sanctions is GRANTED in part and DENIED in part as to the total requested amount. Defendant is ORDERED to pay the Plaintiff \$810.00 in sanctions within thirty (30) days of this Order.

Moving party to prepare the formal Order.

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